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Antigua and Barbuda

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Please recycle

Acronyms

ABAS	Antigua and Barbuda Agenda for SIDS
ABSSS	Antigua and Barbuda Social Security Scheme
CARICOM	Caribbean Community
CCJ	Caribbean Court of Justice
CEDAW	Committee on the Elimination of Discrimination against Women
CHAPA	Central Housing and Planning Authority
CSO	Civil Society Organisation
DOE	Department of Environment
DOGA	Directorate of Gender Affairs
EAG	Environmental Awareness Group
EDP	Prime Minister's Entrepreneurial Development Programme
FSSD	Family and Social Services Division
GCF	Green Climate Fund
GOAB	Government of Antigua and Barbuda
GRACE	Government's Elder Care and Residential Assistance Care Programme
HAPPI	Home Advancement Programme for the Poor and Indigent
ILO	International Labour Organisation
IHO	Integrated Health Outreach
NEMMA	Northeast Marine Management Area
NODS	National Office of Disaster Services
NVRCPD	National Vocational Rehabilitation Centre for Persons with Disabilities
OECS	Organisation of Eastern Caribbean States
PAHO	Pan American Health Organisation
PPED	Protection of Persons in the Event of Disasters
SARC	Support and Referral Centre
SIRF	Sustainable Island Resource Framework Fund
SVSU	Special Victims Support Unit
UNDP	United Nations Development Programme
UNCLOS	United Nations Convention on the Law of the Sea
WAR	Women Against Rape

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I. Introduction

1. Antigua and Barbuda received 155 recommendations during the third cycle of the Universal Periodic Review to the United Nations Human Rights Council in 2021. This National Report, prepared by the Government of Antigua and Barbuda, presents a comprehensive overview of the developments during the present reporting cycle (2022–2026) and provides a status update on the 36 recommendations that were supported by the twin island state and insight into the progress on the recommendations that were noted at the last review.

2. This Report was prepared in accordance with the General Guidelines for the Preparation of Information for the UPR and is the result of a consultative process among key government ministries and agencies coordinated by the Ministry of Legal Affairs.

3. The key governmental entities that collaborated on the Report are:

(a) The Ministry of Foreign Affairs;

(b) The Ministry of Legal Affairs;

(c) The Labour Department;

(d) The Department of Social Policy and the Social Protection Board;

(e) The Directorate of Gender Affairs;

(f) The Family and Social Services Department;

(g) The Royal Police Force of Antigua and Barbuda;

(h) The Department of Environment;

(i) The Ministry of Education;

(j) The Ministry of Health and Wellness;

(k) The Aids Secretariat.

4. While the nation has made marked and considerable developments in several areas, due to the country's position as a small island developing state, significant challenges remain and have hindered progress on certain commitments made during the previous reporting cycle. The impact of the COVID-19 pandemic continues to have a serious financial impact on the island, and the country is still bearing the cost of recovery from Hurricane Irma in 2017 and its significant impact, which severely damaged public infrastructure, private homes and displaced the entire local population on the sister isle of Barbuda.

A. Country background

5. Antigua and Barbuda gained independence from the United Kingdom on the 1st of November 1981. The country is a sovereign twin-island democratic state that upholds the doctrines of the Rule of Law, the Separation of Powers and Constitutional Supremacy. The Country is a member of the Organisation of Eastern Caribbean States (OECS) and the Caribbean Community and Common Market (CARICOM).

6. The Nation's Constitution preserves the dignity and worth of the human being, the entitlement of all persons to enjoy the fundamental rights and freedoms of the individual, the position of the family in a society of free men and women and free institutions. The fundamental human rights principles enshrined in the Universal Declaration of Human Rights (UDHR) are embodied in the protection of the fundamental rights and freedoms of the individual that are entrenched in the Constitution of Antigua and Barbuda.

B. Government: the legislature, executive and the Barbuda Council

7. The Country has a bicameral Parliament which operates using the Westminster System. The Lower House is the House of Representatives, while the Senate is the Upper

House. The Lower House has 17 democratically elected representatives and a Speaker of the House who is not an elected member of Parliament. The Senate is equally made up of 17 members who are appointed by the Governor-General on the advice of the Prime Minister, Leader of the Opposition and the Barbuda Council.

8. The Prime Minister makes a recommendation for ten (10) appointments, the leader of the Opposition recommends four (4) appointments, one (1) appointment is made on the advice of the Barbuda Council, one (1) inhabitant of Barbuda is appointed on the advice of the Prime Minister, and one (1) independent appointment is made at the discretion of the Governor-General.

9. Antigua and Barbuda has held two elections during the present reporting cycle, one in 2023 and the most recent in 2026. The April 30th, 2026, general election saw a significant change in the Parliamentary landscape and the Prime Minister was re-elected for a fourth term with a 15-seat majority of the 17 parliamentary seats. The results of the general election saw the election of two female members of the House of Representatives, both of whom are now also Cabinet Ministers. The number of female senatorial appointments in the current parliamentary term stands at 7, with 4 female government senators, 1 female independent senator representing the interests of the Governor General, 1 female opposition senator, and 1 female president of the senate who is also an appointed senator. There has been a considerable effort to increase the representation of women in political life in recent years, in line with Rec. No. 88.120 which was supported during the previous reporting cycle.

10. There is an overlap within the Legislative and Executive Arms of government, with the Prime Minister appointing the Cabinet ministers from the House of Representatives to assist him in performing the executive functions of government. Constitutionally, the Cabinet is answerable to Parliament.

11. While the central government in Antigua and Barbuda is spearheaded by the Cabinet, governance of Antigua's sister isle of Barbuda is coordinated by the Barbuda Council, an 11-member body, which reports to the Cabinet. The Barbuda Council is a local authority that is recognised by section 123 of Antigua and Barbuda's Constitution and whose functions are outlined by the Barbuda Local Government Act Cap 44. The Barbuda Local Government Act is entrenched by the Constitution and cannot be amended or repealed using ordinary Parliamentary procedure.

12. 9 of the 11 Representatives of the Barbuda Council are elected to the council through local elections on Barbuda, while the Member of the House of Representatives for the constituency of Barbuda and the Barbuda Senator are present as ex officio members of the council.

C. The Judiciary

13. The Judiciary remains an independent arm of Government and serves as the guardian of the Constitution. The provisions in the Supreme Court Order governing the appointment, tenure and removal of members of the judiciary are designed to guard the independence and impartiality of the Judges of the Eastern Caribbean Supreme Court both as a first instance and appellate court.

14. The judges of the Supreme Court cover the High Court and the Court of Appeal and are appointed by the Judicial and Legal Services Commission of the OECS. The apex appellate court remains the Judicial Committee of the Privy Council of the United Kingdom. The right to appeal to the Privy Council is governed by the Constitution. While Antigua and Barbuda accedes to the original jurisdiction of the Caribbean Court of Justice (CCJ) by virtue of its CARICOM membership, a referendum would be required for Antigua and Barbuda to adopt the CCJ as its final appellate court.

15. Citizens and Residents of the country can petition the High Court in respect of any perceived violation of the fundamental liberties and rights granted by the Constitution. Any individual or interest group may seek to challenge the validity of legislation or provisions of legislation for incompatibility with the Constitution. Judicial review of executive action is

also available where a citizen feels that a decision or action of a government entity has infringed or infringes on their human rights.

16. The Judiciary also benefits from significant female representation. Antigua and Barbuda's Senior High Court Justice is female, and the Bench has the benefit of 3 female Judges. Antigua and Barbuda's Chief Magistrate is also a female, and the Magistracy also has the benefit of 3 female magistrates. The President of the Industrial Court is also a female.

II. Key developments since the third cycle report

A. Decriminalisation of consensual same-sex intercourse

17. In July 2022, the Eastern Caribbean Supreme Court High Court of Justice in Antigua and Barbuda handed down the landmark ruling in the Constitutional Claim *Orden David et al v The Attorney General of Antigua and Barbuda,* striking down sections 12 and 15 of the Sexual Offences Act of 1995, which criminalised same-sex sexual relations and ascribed custodial criminal sentences. This is a significant milestone and direct progress on noted Rec. No. 88.52, which called on Antigua to prohibit discrimination based on sexual orientation and gender identity and decriminalise consensual same-sex relationships.

18. The court ruled that sections 12 and 15 of the Sexual Offences Act contravened sections 3, 12, and 14 of the Constitution, which provide protections of the right to liberty and protection of the law, freedom of expression and protection from discrimination, respectively, insofar as they are inconsistent with the rights of persons 16 or older to consensually engage in same-sex private sexual relations.

19. The Attorney General conceded that the understanding of fundamental rights has evolved and that the provisions of the Sexual Offences Act, which criminalised consensual same-sex sexual relations, infringed the rights of individuals who engaged in same-sex sexual relations in Antigua and Barbuda.

B. International human rights instruments

20. Since Antigua and Barbuda's National submission during the third UPR cycle, Antigua and Barbuda became the first country in the Caribbean to ratify International Labour Organisation (ILO) Convention 190 – Violence and Harassment in the World of Work, 2019 (Antigua and Barbuda's Instrument of Ratification was deposited on 27 May 2022. The Convention entered into force for Antigua and Barbuda in May 2023). A Workplace Sexual Harassment Bill is currently undergoing National Consultation with the hopes of being enacted by Parliament in 2026.

21. Antigua and Barbuda also ratified ILO Convention 183 – Maternity Protection, 2000, in May 2022 and made amendments to its National Labour Code in April of that same year to increase the period of maternity leave from 12 weeks to 14 weeks. This outcome is directly linked to Rec. No. 88.5, which was supported by Antigua and Barbuda during the previous reporting cycle.

22. In March of 2025, Antigua and Barbuda further affirmed its commitment to protecting marine ecosystems, which support local fisherfolk and advance sustainable development, by ratifying the Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction (BBNJ).

23. Antigua and Barbuda has ratified 7 out of the 9-core international human rights instruments and continues to face human resource challenges in fully meeting its reporting obligations under the various Conventions. The reports for the Convention Against Torture and the Convention on the Elimination of Racial Discrimination are being drafted with support from development partners.

C. Partnership with civil society

24. The Government of Antigua and Barbuda has continued to foster strong partnerships with Civil Society Organisations for the advancement of social protection and environmental sustainability in Antigua and Barbuda. Through the Government's long-term partnership with the Environmental Awareness Group (EAG), the Northeast Marine Management Area (NEMMA Marine Reserve) is monitored, and crucial conservation work is carried out to protect the endemic marine life and mangrove wetlands, as well as preserve the critically endangered Antiguan Racer Snake population that lives exclusively on islands in this protected marine area.

25. Antigua and Barbuda has also made major strides in addressing the challenges faced by individuals who are victims of sexual and gender-based violence by entering a partnership with Integrated Health Outreach (IHO) for the construction of a purpose-built shelter/ safe house for victims of domestic violence in Antigua and Barbuda. This shelter would support the work of the Directorate of Gender Affairs' (DOGA) Support and Referral Centre (SARC), which remains a critical pathway for persons who experience gender-based violence to report instances of violence and gain access to support and legal services. This outcome is directly linked to Rec. No. 88.133 and Rec. No. 88.134 supported during the previous reporting cycle, which called on Antigua to continue advancing efforts to eliminate gender-based violence.

26. Through the Labour Department, the Government actively engages with Trade Unions and other interest groups like Women Against Rape (WAR) and the Domestic Workers Association to ensure effective implementation of ILO conventions C189 and C290 and protect the rights of workers in Antigua and Barbuda.

D. Climate change

27. In 2024, Antigua and Barbuda hosted the 4th International Conference on Small Island Developing States. The conference yielded actionable outcomes and led to the adoption of the Antigua and Barbuda Agenda for SIDS (ABAS), which is a comprehensive policy approach and official plan of action for how the Government and the global SIDS collective can achieve sustainable development within their unique financial and geographical constraints. This aligns with the nation's supportive position on Rec. No. 88.70, to implement policies to build resilience and mitigate the impact of climate change while advocating concerted efforts by all nations to conserve the environment.

28. Antigua and Barbuda, through its active involvement with the Commission on Small Island States on Climate Change and International Law, successfully requested a clarifying Advisory Opinion from the International Tribunal for the Law of the Sea (ITLOS) in December 2022, asking ITLOS to define state obligations under UNCLOS to prevent, reduce, and control marine pollution from greenhouse gas emissions. Prime Minister Gaston Browne led Antigua and Barbuda's delegation to advance arguments that UNCLOS Member states have strict due diligence obligations of conduct to create, implement, and enforce laws to mitigate climate impacts on the oceans. This also aligns with Rec. No. 88.70 showing Antigua and Barbuda's commitment to advancing Climate policy and advocacy.

III. Promotion and protection of human rights in Antigua and Barbuda

A. Human rights and climate change (Rec. No. 88.68, 88.69, 88.70)

29. Antigua and Barbuda has received considerable support in making advancements toward the promotion and protection of human rights in the context of climate change. In 2023, through the country's participation in the United Nations Development Programme (UNDP) EnGenDER project, capacity building trainings and community outreach programmes were led by the Department of Environment (DOE), DOGA and the National Office of Disaster Services (NODS) to raise awareness about the impact of Climate Change

on vulnerable populations as part of the national effort to continue to implement policies to mitigate the effects of climate change and strengthen the resilience of communities in line with Rec. No. 88.68.

30. The local EnGenDER implementation was done under the moniker Wi-REDI, we are Resilient, Educated, Dynamic, and Inclusive, which promoted a community-centred approach to climate change adaptation and disaster risk management. As part of the project, DOGA delivered two training workshops with first responders, educating them on the heightened risk of instances of gender-based violence in shelters during disaster situations, and the DOE conducted awareness-raising engagements with schools about the importance of transitioning to renewable energy sources.

31. The Government is also actively following the Treaty on the Protection of Persons in the Event of Disasters (PPED) at the UN level, and representatives from the Antigua and Barbuda Red Cross and the Ministry of Legal Affairs attended a regional roundtable in March 2026, which also aligns with Rec. No. 88.68.

32. Antigua and Barbuda has also recently benefited from a US12.3-Million-dollar Early Warning for All (EW4ALL) initiative funded by the Green Climate Fund (GCF), being implemented through NODS in partnership with the Antigua and Barbuda Met Office under the UNDP. Antigua and Barbuda is the only Caribbean beneficiary of the project, which runs until 2030. Under EW4ALL, Antigua and Barbuda's multi-hazard early warning system will be strengthened, and there will be a complete review and update of disaster legislation. It is also anticipated that a dedicated national preparedness and response fund will be set up to promote greater community-level preparedness for climate hazards and mitigate the impact of climate change on communities. The outcomes under this project align with Rec. No. 88.69, which called for Antigua to put in place effective public environmental policies to fight against the impacts of climate change, such as floods, cyclones and hurricanes in the country, a position the country has supported.

B. Prohibition on torture (Rec. No. 88.82)

33. As a general point and with specific reference to the recommendation (Rec.) No. 88.82, Antigua and Barbuda reiterates that Chapter II of the Constitution governs the fundamental rights and freedoms of the individual. While there is no specific law formally prohibiting the introduction of evidence obtained under torture or other cruel, inhuman or degrading treatment, section 5 of Antigua's Constitution provides express protection from torture and degrading treatment. It remains the basis on which evidence obtained by these unlawful means is excluded from use in judicial proceedings.

34. Antigua and Barbuda also acceded to the Convention Against Torture in 1993 and enacted the Suppression of Torture Act in that same year. The Suppression of Torture Act criminalises torture in Antigua and Barbuda and adopts the framework of the Convention to set the standard for how the matter of torture and cruel and inhuman treatment are handled.

35. The Government acknowledges concerns raised during the 3rd cycle review on the issue of the Death Penalty and reiterates its longstanding position that the Constitution enshrines the right to life, the right to a fair trial and the right to secure protection of the law. The Death Penalty is no longer a mandatory sentence in practice since the Privy Council ruling in *Pratt and Morgan vs The Attorney General*, which deemed the death penalty cruel treatment and recommended its application in only the most extreme circumstances. In instances where the death penalty could be imposed, Antigua and Barbuda is part of a Judicial system that allows for appeals to the Court of Appeal of the Eastern Caribbean Supreme Court and to the Judicial Committee of the Privy Council, the country's apex court. Antigua and Barbuda has not had an execution under the death penalty since 1991, and inmates who were previously sentenced to the death penalty have since had their sentences commuted, leaving no inmates on death row.

C. Human trafficking and contemporary forms of slavery (Rec. No. 88.92, 88.94, 88.95, 88.96)

36. The Trafficking in Persons Prevention Act 2010 and its amendments remain the legal framework for addressing human trafficking in Antigua and Barbuda. In 2024, the Trafficking in Persons Prevention Unit collaborated with the Labour Department to highlight the exploitation and trafficking of migrant workers. The unit continues to report annually on the state of human trafficking in the island and works alongside government entities like the Family and Social Services Department (FSSD), DOGA and the Domestic Workers Association, directly strengthening measures to assist victims of human trafficking, taking into account the needs of particularly vulnerable groups, such as women domestic workers, in line with Rec. no. 88.92).

37. The Units' collaboration with DOGA also ensures that victims of trafficking who may also be victims of sexual and gender-based violence receive psycho-social support interventions and emergency housing in line with Rec. no. 88.95 to continue to intensify efforts to prevent trafficking and sexual exploitation of women and girls. Despite not convicting anyone for trafficking, in 2024, the Trafficking in Persons Prevention Unit initiated investigations of 13 suspects in nine cases (seven suspects for sex trafficking, four for forced labour, and two for unspecified forms of exploitation) and continued the investigation of one sex trafficking suspect. In 2023, the unit investigated 26 suspects in 25 cases (12 suspects for sex trafficking, four for labour trafficking, and 10 for unspecified forms of exploitation).

38. The Government, through the Trafficking in Persons Prevention Unit, also conducted assessments to determine immediate and long-term victim needs, worked closely with police to address potential risks, and ensured victims had access to services, including legal aid, healthcare, psychological support, and livelihood programs in line with Rec no. 88.96 to combat trafficking and prevent all forms of slavery.

D. Right to social security, human rights and poverty (Rec. No. 88.99, 88.100, 88.102, 88.104)

39. Antigua and Barbuda has taken significant steps to alleviate poverty and strengthen its social protection systems. Through the Home Advancement Programme for the Poor and Indigent (HAPPI), the government continues to provide newly constructed homes for some of the nation's most vulnerable. The programme has delivered 111 homes across the island so far and intends to deliver at least 53 homes in 2026. Applications for assistance from HAPPI are made through Antigua and Barbuda's Social Protection Board.

40. The Social Protection Board has also benefitted from additional funding from the central government in 2025 to assist with the provision of food assistance vouchers and welfare packages for vulnerable residents. The Government also continues to subsidise the rate of payment for water and electricity for individuals over the age of 80, which reduces the financial strain on the elderly as part of a sustained effort to alleviate poverty and strengthen the social protection system in line with Rec. No. 88.99 and Rec No. 88.102. Nearly 7,000 pensioners and 1,674 vulnerable households currently benefit from a combination of social assistance measures, including utility subsidies, food support and targeted financial aid.

41. The Ministry of Health and Wellness delivers the Government's Elder Care and Residential Assistance Care Programme (GRACE) and provides free at-home care for the elderly. Where at-home care is not appropriate, the Fiennes Institute for the Elderly and Indigent remains a government-funded accommodation option for vulnerable senior citizens who may not have familial support or are financially challenged. Round-the-clock care is provided by trained Government Nurses. The continued investment in these initiatives aligns with the country's National Policy on Ageing and shows that Antigua and Barbuda continues to promote successful social policies for the vulnerable in line with Rec. No. 88.104.

42. The Antigua and Barbuda Social Security Board remains the nation's contributory source of Social Security. Contributions to the scheme are mandatory, and beneficiaries are

eligible for maternity payments, sickness benefits, disability benefits, old-age pensions and grants, and funeral grants.

43. In April 2025, the Government increased the minimum pension payable from EC$350.00 to EC$500, providing greater support for approximately 3,700 retirees. In 2026, a 5% increase in payments for pensioners across the board through the ABSSS was approved, underscoring the Government's commitment to prioritising social protection in the country in line with Rec. No. 88.102.

44. The Government is also invested in empowering Antiguans and Barbudans through housing and land ownership through the Land for Youth programme spearheaded by the National Housing and Urban Development Company. The Central Housing and Planning Authority (CHAPA) also continues to provide access to low-cost durable housing for persons in Antigua and Barbuda to ensure that finances are not a barrier to homeownership.

E. Right to health (Rec. No. 88.107)

45. Antigua and Barbuda has made significant strides in healthcare to ensure access to health care and effective treatment of non-communicable diseases for residents. The Ministry of Health and Wellness has operated a dedicated Non-Communicable Diseases (NCD) Department since 2015, which implements actions under the National Multi-sectoral Action Plan for the Prevention and Control of Noncommunicable Diseases in Antigua and Barbuda. Parliament has also tabled the Sugary Beverage Act, which is set to introduce a tax on sugary beverages to disincentivise consumption.

46. The country has also taken the lead in the Eastern Caribbean to eliminate cervical cancer as a public health problem. Women between the ages of 30 and 65 in Antigua and Barbuda are eligible for free HPV Cervical Cancer screening if they have never had an HPV test, or if their last HPV test was conducted more than five years ago. The Free Screenings are accessible at local clinics across the country. The Government is also expected to reopen the Cancer Centre in 2026.

47. In 2017, the first successful kidney transplant was performed in Antigua and Barbuda and in 2025, the Sir Lester Bird Medical Centre (SLBMC), the country's sole public hospital, carried out its 13th kidney transplant, a milestone in Antigua and Barbuda's provision of advanced healthcare. The Government has also committed to the construction of a new Renal Centre at the former Holberton Hospital site. Once completed, the facility will expand SLBMC's dialysis capacity from 27 to 39 stations, including isolation units for infection control and provision for peritoneal dialysis.

F. Right to development (Rec. No. 88.101)

48. Antigua and Barbuda continues to promote sustainable economic and social development, and to improve people's living standards. The sister isle of Barbuda, which is still recovering from the devastating impact of Hurricane Irma, has recently benefitted from the opening of a new international airport terminal in October 2024. The Government has also committed to construct 50 condominium-style homes on Barbuda with the assistance of the Chinese Government.

49. The Government continues to promote climate-adaptive development through the Sustainable Island Resource Framework Fund (SIRF Fund). The fund operates as a special fund that plays a crucial role in the country's environmental management and climate change efforts by channelling funding from international and domestic sources. Under the SIRF Fund's Revolving Loan Programme, resources and financing are provided to individuals, communities, and businesses in Antigua and Barbuda to enhance their resilience against climate-related events and natural disasters. Particularly, it aims to provide access to low-interest financing to improve the livelihood and resilience of vulnerable persons and support climate change adaptation.

50. In further commitment to the right to development and improved standard of living, the Government has made significant progress on its Booby Alley Housing Project. The

transformative development was made possible through a generous EC $100 million grant from the Government of the People's Republic of China and supports the construction of 150 modern housing units.

51. The country has also made key strides in sustainable development with the introduction of wind and solar energy to the electricity grid. The Department of Environment has spearheaded the country's renewable energy initiative, which has seen the installation of wind turbines at the Sir Vivian Richards Stadium and the establishment of solar farms at the V.C Bird International Airport.

G. The rights of persons with disabilities (Rec. No. 88.154–155, 88.113, 88.140, 88.104)

52. In April 2026, the Ministry of Health and Wellness opened the Kevorn Etienne Centre, a newly constructed, purpose-built facility which houses the Care Project and provides accommodation and healthcare services for persons in Antigua and Barbuda living with severe disabilities. The construction of the facility was a collaboration between the Ministry, The Friends of the Care Project Charity and the Jumby Bay Hotel.

53. Antigua and Barbuda has also continued to strengthen the work of the National Vocational Rehabilitation Centre for Persons with Disabilities (NVRCPD), which is the key agency within the Ministry of Social Transformation that engages with the rights and needs of persons living with disabilities. The Rehabilitation Centre underwent a major renovation and reopened its doors in 2024 after the Ministry received funding assistance from the British High Commission in St. John's.

54. The NVRCPD also houses an Aquaponics Centre and trains persons living with disabilities who engage with the centre in sustainable agricultural methods, and has provided an employment and empowerment avenue for persons, as the produce of the Aquaponics Centre is sold in the local market.

55. Under Antigua and Barbuda's Education Act 2008, the Ministry of Education continues to work toward integrating children with disabilities into the broader school network to refrain from restricting their enrolment to the School for the Blind and the Adele School. The Ministry has prioritised training specialist teachers and works alongside the Department of Family and Social Services to effectively screen children and ensure that they are provided the resources needed to succeed within the classroom.

56. The Government has also committed to engaging in sweeping Mental Health reform to combat mental health stigma in Antigua and Barbuda. The proposed Mental Health Bill 2026 has already had its first reading in parliament and was the subject of intense public and specialist consultation. The Pan American Health Organisation (PAHO) played a central role in drafting the Bill, providing technical guidance and international best practice standards throughout the process. A key component of the reforms is the transition of the Clarevue Psychiatric Hospital from its present location to a new modernised facility and the establishment of a Behavioural Health Unit.

57. Antigua and Barbuda continues to advance the rights of persons living with disabilities through the Disabilities and Equal Opportunities Act 2017. This Act sets out the rights framework for persons living with disabilities and establishes a specialised tribunal for complaints. In 2025, an amendment was proposed in Parliament to regulate the registration and use of service dogs for visually impaired persons, which, though not a regulation, aligns with Rec no. 88.155.

H. Gender equality, women's empowerment and violence against women (Rec. No. 88.120, 88.122, 88.124, 88.126, 88.127, 88.129, 88.133, 88.134, 88.136, 88.138, 88.104)

58. The Ministry of Social and Urban Transformation, through the Directorate of Gender Affairs (DOGA), holds the primary mandate in Antigua and Barbuda for mainstreaming

Gender and ensuring that the Government intensifies its efforts to eradicate violence against women and girls.

59. Through the operation of the Support and Referral Centre (SARC), the Government provides responsive one-stop-shop survivor-centred services for persons who experience gender-based violence. The SARC provides forensic medical examinations, legal assistance with securing protection orders, and is also a referral pathway to other essential services including counselling and emergency accommodation. The SARC functions alongside the Special Victims Support Unit (SVSU) of the Royal Police Force to ensure that there are timely reporting and investigation of incidents of Sexual and Gender-Based Violence.

60. In 2023, the Directorate developed a new Gender Based Violence Action Plan which shapes the approach of the Government in educating persons about gender-based violence and improving the response of first responders. One of the key outcomes of the plan is the establishment of a shelter for victims of gender-based violence, which would significantly improve the service provision offered by the Government. The Directorate has since partnered with Integrated Health Outreach (IHO) to ensure that the shelter is built to house vulnerable women who are in emergencies. The partnership for the shelter has already received the approval of the Cabinet and marks significant progress on recommendations 88.133 and 88.134.

61. The Directorate also relies heavily on mobilisation and advocacy around the 16 Days of Activism initiative and uses this period to shine a spotlight on issues concerning Gender Equality and Sexual and Gender-Based Violence in Antigua and Barbuda. In addition to the 16 Days campaign, the Directorate maintains a strong civil society relationship with the Civil Society Organisation Integrated Health Outreach and hosts a yearly Gender-Based Violence Walk to commemorate International Women's Day. More than 2,000 persons participated in the public advocacy march in 2025, and 2026, the third year of the initiative, saw increased support from the general public, in line with recommendations 88.126 and 88.136.

62. In addition to the technical gender mainstreaming work of the Directorate, Antigua and Barbuda also benefits from the use of the Sexual Offences Model Court structure, which employs a specialised set of court procedures that are adopted when the court is dealing with sexual offences. The specialised procedures have been in use since 2019 and introduced vulnerable witness protection during examination, allowing for complainants to give evidence remotely to the court.

63. Antigua and Barbuda has also expanded its efforts to protect women and girls from sexual violence with the introduction of a Sexual Offenders Registry. The registry was introduced by way of the National Sexual Offender Registry Act 2022, which creates a framework for the registration and monitoring of persons who have been convicted of a sexual offence in Antigua and Barbuda. The registry, though not public, is accessible to persons who have an interest in the welfare of children and is maintained by the Royal Police Force of Antigua and Barbuda.

64. The Country is also in the process of finalising its National Gender Equality and Social Inclusion Policy, which will outline the Government's way forward to achieving gender equality in line with UN Human Rights best practices and standards. The policy has been developed through a consultative process which has ensured an all-hands approach by key government departments. A final draft of the policy document has been prepared and is expected to be presented to the Cabinet for approval so that it can be implemented in line with recommendation 88.127.

65. Steps have also been taken to improve women's empowerment through the Directorate's Work and Life Skills Programme. The initiative was relaunched in 2022 and saw the Directorate offering entrepreneurship and financial literacy courses for women. In 2023, the Directorate offered a marketing course, a business planning course, a sewing course, and a makeup class to persons in hopes of empowering participants to pursue entrepreneurship or improve their existing businesses. In 2026, the Directorate held an Access to Finance and Empowerment fair which saw more than 60 individuals taking advantage of the opportunity to connect with financial and insurance institutions. The event was a partnership with over 11 stakeholders from various financial and insurance institutions to educate women on tailored loans, grants and insurance plans.

66. In 2026, Antigua and Barbuda's former Director of Gender Affairs, Ms Sheila Roseau, was elected to the United Nations Committee on the Elimination of Discrimination against Women (CEDAW), one of the world's foremost human rights treaty bodies dedicated to advancing gender equality and safeguarding the rights of women and girls. Her election as an expert to this body shows that Antigua and Barbuda is investing in women and ensuring that they are platformed as Human Rights champions.

I. The rights of children (Rec. No. 88.133, 88.134, 88.138, 88.143, 88.148 88.104)

67. Antigua and Barbuda remains committed to protecting and advancing the rights of the child and has adapted its legislation in line with the Convention on the Rights of the Child. Public Education remains free in Antigua and Barbuda, and in 2026, the Government extended its commitment to educating the nation's youth by announcing that it will bear the cost of covering the fees for students sitting their Caribbean Secondary Education Certificate Examinations at the end of their secondary education. Ninety-nine per cent of all citizens 15 years and older have completed at least five years of formal education and are functionally literate.

68. Tertiary Education at the Antigua and Barbuda College of Advanced Studies and the University of the West Indies Five Islands Campus in Antigua have also been made tuition-free by the Government as part of its commitment to ensure that Education remains accessible.

69. Since the passing of the Child Justice Act 2015, changes have been made to ensure that the Juvenile Justice system in Antigua and Barbuda is significantly improved, marking a shift from criminalisation to rehabilitation. The Act introduced measures to keep youth in conflict with the law separated from adult offenders and focused on restorative justice instead of custodial sentences, particularly in the case of non-violent child offenders. The Child Justice (Amendment) Act 2018 also brought significant reform, shifting the age of criminal responsibility from 8 to 12 years of age.

70. In keeping with the restorative justice approach, the former Boys Training School was remodelled, reopened, and renamed in 2025 as the Denis Bowers Rehabilitation Centre (DBRC), transitioning from a detention centre for young offenders to a rehabilitative facility. The Centre not only houses boys in conflict with the law but also houses boys in need of care and protection who have been taken into the care and custody of the state due to parental neglect. These young boys are also integrated into the national school system and attend regular school to encourage positive socialisation.

IV. Development on 3rd cycle noted recommendations

71. The recommendations noted by Antigua and Barbuda during the 3rd Cycle were mostly centred on the issues of the death penalty, decriminalisation of same-sex relationships, the establishment of a national human rights institution, prison conditions, migrant workers, corporal punishment, and progress on ratifying outstanding human rights treaties. Since 2021, there has been progress on several of the areas of concern, most notably on the matters of prison conditions and same-sex relationships.

A. National human rights institution (Rec. No 88.40–88.50)

72. The Ombudsman, an independent constitutional person who is mandated to investigate complaints from persons aggrieved by the actions of Government officials and statutory authorities. This office, while it functions in a capacity that takes and investigates wrongdoing by the state, is not the same as an independent Human Rights Institution. Antigua and Barbuda has considered establishing an independent Human Rights Institution, possibly through restructuring the office of the Ombudsman, and has sought technical assistance for mapping this transition.

B. Equality and non-discrimination (Rec. No 88.52–88.152)

73. Antigua and Barbuda's Constitution prohibits discrimination based on sex, and in the High Court's 2022 decision of *Orden David et al v The Attorney General,* the Constitution has been interpreted to extend protection from discrimination based on sexual orientation. The same precedent declared sections 12 and 15 of the Sexual Offences Act of 1995, which criminalise sexual relations between consenting individuals, unconstitutional and decriminalised consensual same-sex sexual activities in line with recommendations 88.52, 88.54, 88.55, 88.56, 88.58, and 88.60.

74. Consultation on the draft National Gender Equality and Social Inclusion Policy also includes representatives from organisations that represent the interests of LGBTQ+ persons. It is also noted that from 2018–2022, the present administration had appointed an openly Lesbian Senator who advocated for the end of discrimination based on sexuality.

C. Prohibition of torture and ill treatment (Rec. No 88.81–88.90)

75. In 2022, the Government began work on infrastructural changes at His Majesty's Prison to improve the issue of overcrowding in the nation's lone prison facility in line with noted recommendations 88.84, 88.85, and 88.56. The first phase of major upgrades saw the addition of 170 new beds. The remand area was renovated and 36 container units, which hold a total of 144 beds, were also erected. The facilities have new showers and toilet facilities.

76. In addition to the holding cells, contractors assembled five containers which house a new kitchen, storage area and offices. The containers were also retrofitted with an interior drainage system, which includes new plumbing for exterior drainage. There is also a new sewage tank with increased water storage capacity.

77. In November 2025, the Minister of Legal Affairs and Public Safety announced several reforms aimed at reducing the backlog in the Criminal Justice system and improving the efficiency of criminal prosecutions to also reduce prison overcrowding. The prison also recruited 42 new correctional officers in 2025 who were extensively trained in conflict resolution, first responder training, stress management, physical education and self-defence, ethics, health and wellness, human rights in prison management, rehabilitation and mental health.

D. Sexual and gender-based violence (Rec. No 88.118, 88.132, 88.137)

78. Antigua and Barbuda's Parliament is presently tabling the Workplace Violence and Harassment (Prevention) Bill after the Labour Department and the Directorate of Gender Affairs engaged in broad national consultation. The bill provides for sanctions for employers who fail to promote workplace environments that are free from harassment, including Sexual harassment. The Directorate of Gender Affairs has also drafted a National Workplace Sexual Harassment policy, which will act as a policy framework to work alongside the proposed legislation in line with noted recommendations 88.118 and 88.132.

V. Challenges and constraints

79. Antigua and Barbuda has continued to invest in the promotion and protection of Human Rights; however, despite the marked progress made to ensure that governance structures are in line with international standards, significant challenges remain. The country has made efforts to keep up with its human rights reporting obligations, but human resource restraints and limited technical assistance continue to play a role in the country's overdue reporting.

80. The country does not have a dedicated unit or mechanism for monitoring and reporting on Human Rights, and there is no comprehensive system in place for tracking the progress on the recommendations of the Universal Periodic Review.

81. Assistance is needed in creating a specific unit staffed by trained personnel whose responsibility would include public dissemination of information concerning the human rights obligations of the State, investigating human rights issues for the purpose of creating a data bank and generating reports as and when required.

82. Considering this, Antigua and Barbuda continues to invite support for technical assistance and relies heavily on the relationship with the Commonwealth Small States Office and the Office of the Commissioner for Human Rights Caribbean Office, who are involved in building capacity and strengthening the nation's involvement in the UN Human Rights system.